



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11309

AUG 30 1994

EXPIRATION DATE: July 1, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE. Association of American Railroads
Washington, D.C.
2. PURPOSE AND LIMITATION. This emergency exemption authorizes the shipment of an AAR Specification 211A100W1 tank car, containing a class 3 material, having a non-reclosing safety relief device, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED. 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED. 49 CFR 173.31(a)(15) and 173.242
5. BASIS. This emergency exemption is based on the Association of American Railroad's application of August 22, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101).

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Combustible liquid, nos	Combustible liquid	NA 1993	III
Methyl alcohol solutions	3	UN 1230	II

7. PACKAGING(S) and SAFETY CONTROL MEASURES.

a. PACKAGING. The packaging prescribed is an AAR Specification 211A100W1 tank car, UTLX 67571, having a non-reclosing safety relief device with a start-to-discharge pressure of no more than 165 psig.

b. CARGO MIXTURE: The cargo is a mixture of methyl alcohol and water (28 percent methyl alcohol by volume; 22.2 percent methyl alcohol by weight).

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c. MONITORING. The tank car is part of a Federal Railroad Administration, Association of American Railroads, and Railway Progress Institute over-the-road tank car safety research project. The tank car requires periodic monitoring for data acquisition and for the maintenance of instrumentation.

d. MARKING. Tank car UTLX 67571 must be marked DOT-E 11309 in four inch letters and numerals on a contrasting background above the AAR Specification number.

8. SPECIAL PROVISIONS.

a. The registration requirements of Subpart G of Part 107 do not apply.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS.

a. The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

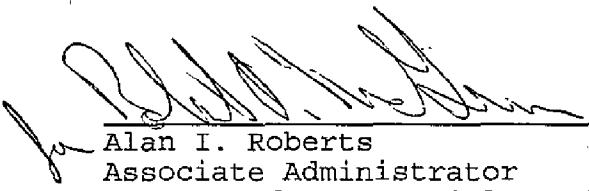
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (~~49~~ CFR 171.15 and ~~171.16~~ apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 30 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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